

26STCV03457 26STCV03457

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-21

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Case Number: 26STCV03457 Hearing Date: July 21, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July 21, 2026 TRIAL DATE: Not
set

CASE: Jose Kim v.

Birrieria Villalobos, Inc., et al.

CASE NO.: 26STCV03457

PLAINTIFF'S

MOTION TO COMPEL FURTHER RESPONSES

MOVING PARTY: Plaintiff

Jose Kim, in pro per

RESPONDING PARTY: Defendants

Birrieria Villalobos, et al., in pro per

This case arises from a motor vehicle accident. On June 12, 2026, Plaintiff, Jose Kim, filed this motion to compel further responses to Plaintiff's written discovery from Defendants, Birrieria Villalobos, Inc., Anjelica Villalobos, and Alejandro Gomez.

On July 6, 2026, Defendants filed an opposition.

Plaintiff did not file a reply.

The

motion is procedurally defective for several reasons. First, Plaintiff does not establish having met and conferred prior to the filing of this motion. A motion to compel further responses to discovery must be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., §§ 2030.300(b)(1); 2031.310(b)(2).) Section 2016.040 provides, in part, "(a) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (b) The declaration shall also include whether the moving party has met and conferred, including through an electronic communication, regarding the retention of a certified shorthand reporter to report the hearing on the motion." Here, Plaintiff did not include a meet and confer declaration.

Second, Plaintiff's separate statement does not set forth in full the discovery requests at issue nor Defendants' responses. California Rules of Court, rule 3.1345(a)(3) requires that all motions for responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. Having failed to do so, the court is unable to understand nor resolve this discovery dispute.

Third, Plaintiff does not indicate when Defendants served their verified discovery responses. Notice of a motion to compel further must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., §§ 2030.300(c); 2031.310(c).)

Based on the foregoing, the motion is DENIED.

Defendants

to give notice, unless waived.

Dated: July 21, 2026

Brock T. Hammond

Judge of the
Superior Court